

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

FRANCIS SHEKA KANU, *Complainant*

v.

EJIKE DICKSON EZE DBA EJIKE INTERNATIONAL TRADE LIMITED; SEALINES INTERNATIONAL; SEAMATES INTERNATIONAL, INC.; AND MAERSK, *Respondents*.

DOCKET NO. 25-05

Served: August 19, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER REQUIRING COMPLAINANT TO FILE STATUS REPORT BY SEPTEMBER 2, 2025

On August 5, 2025, I issued an Order Requiring Complainant to File Status Report by August 18, 2025 (the “August 5 Order”). Complainant filed the status report on August 18, 2025. As discussed below, Complainant is **HEREBY ORDERED** to file an additional status report no later than **September 2, 2025**, reporting on the status of Complainant’s container shipment.

Complainant filed a Complaint in this matter on March 19, 2025. In it, Complainant alleges that he worked with Respondent Ejike Dickson Eze d/b/a Ejike International Trade (“Eze”) to have a container shipped from North Carolina to a port in Sierra Leone, but that it was eventually delivered to a port in Congo. (Complaint, ¶¶ IV.A-IV.H). Complainant alleges that despite his efforts to have the container re-shipped to the correct destination, including paying additional money, the container has not been re-shipped to the correct destination. (Complaint, ¶¶ IV.E-IV.N). Complainant alleges Shipping Act violations against Eze, as well as Respondents Maersk and SeaLines International and SeaMates International, Inc. (“SeaLines”). Among alleged violations, Complainant alleges a violation of § 41104(a)(4), which prohibits a common carrier from engaging in “any unfair” practice. Respondents Maersk and SeaLines, who may be ocean common carriers, allegedly shipped Complainant’s container to the wrong destination, failed to correct their mistake, and charged Complainant additional money in 2023 to have his container re-transported to the correct location, but still have not moved the Container. (Complaint, at 7, ¶ IV.P.2).

Currently outstanding are Motions to Dismiss by Maersk and SeaLines, as well as Complainant’s Motion for Leave to Amend the Complaint (“Motion for Leave”). In addition, Complainant filed a Request to Discontinue and Withdraw Complaint/Docket No. 25-05 Before the Commission (“Request to Withdraw”). The Request to Withdraw is dated June 23, 2025, after the Motions to Dismiss were served, and after the Motion for Leave is dated.

In the Request to Withdraw, Complainant states that “in consideration” of the steps Eze has taken to redirect Complainant’s container to the correct destination, Complainant requests that this matter be discontinued and withdrawn.

To clarify the Request to Withdraw, I ordered Complainant to file a status report no later than August 4, 2025.

On August 4,¹ 2025, Complainant filed a status report. In the status report, Complainant asserts that Eze transmitted \$600 to a shipping agent in Congo to process the release of the container from customs. Complainant reports that after the container is released, arrangements will be made to have the container re-shipped to Sierra Leone. Complainant states that he anticipates receiving confirmation of the actual shipment date in the coming days. Complainant indicates that he believes that this matter can be fully resolved as to all Respondents if the container is properly transported to the correct destination. Complainant’s status report includes a receipt for \$600, though the parties involved in the payment are unclear. The status report also contains a copy of a letter from Eze to Complainant asking that the Complaint be withdrawn in exchange for coordinating the shipment of the container from Congo to Sierra Leone.

In the August 18, 2025, status report, Complainant reports that Eze and his agent have been working with customs in Congo to get the container released. Complainant also asks for assistance from the other Respondents to facilitate the expedited release and redirection of the container to the original destination of Queen Elizabeth Port in Freetown, Sierra Leone.

Accordingly, Complainant is **HEREBY ORDERED** to provide a status report no later than **September 2, 2025**, regarding the status of the container at issue. The status report should include information regarding whether arrangements to ship the container have been made, including the dates of departure and arrival.

Complainant is reminded to file the status report by emailing the Office of the Secretary (secretary@fmc.gov); Complainant is also to copy opposing parties, and provide a courtesy copy to the Office of Administrative Law Judges (judges@fmc.gov).

It is in the interests of all Respondents to facilitate the transfer of Complainant’s container to the appropriate destination as soon as practicable. The parties are advised that unless substantial progress is made towards the resolution of this matter, the parties should be prepared to move forward with litigation.

Richard C.
Ambrow Jr -S

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Richard C. Ambrow Jr -S
Date: 2025.08.19
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Richard Ambrow
Administrative Law Judge

¹ The August 5 Order erroneously indicates that a status report was filed August 2, 2025.